

25STCV19079 25STCV19079

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Case Number: 25STCV19079 Hearing Date: September 29, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Petition to Approve

Minor's Compromise

The hearing on the Petition to Approve Minor's Compromise is continued.

BACKGROUND

Plaintiffs Rosalia Flores-Diaz (Petitioner), Alberto Dominguez-Ibarra (Dominguez-Ibarra), Emily Dominguez Flores, and Jacob Dominguez Flores (Claimant), a minor appearing through Petitioner as his guardian ad litem (collectively, "Plaintiffs"), filed this action against Defendant 14153 Victory, LLC (Defendant), alleging that Defendant failed to repair substandard conditions in the apartment Plaintiffs rent from it.

The causes of action are: (1) Breach of Warranty of Habitability; (2) Breach of Covenant of Quiet Enjoyment; (3) Negligence; and (4) Breach of Contract.

Petitioner filed a Petition to Approve Minor's Compromise. No opposition was filed.

LEGAL STANDARD

A guardian ad litem appearing for a minor "shall have power, with the approval of the court in which the action or proceeding is pending, to compromise the same." (Code Civ. Proc., § 372, subd. (a)(3).) The petition "must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition." (Cal.

Rules of Court, rule 7.950.) The order approving the compromise also fixes the expenses, costs, and attorney fees paid from the minor's recovery, and only those the Court approves may be paid. (Prob. Code, § 3601, subd. (a).) In fixing the fee, the Court applies "a reasonable fee standard" and "must give consideration to the terms of any representation agreement." (Cal. Rules of Court, rule 7.955(a)(1), (2).)

ANALYSIS

I. Settlement and Apportionment

Petitioner seeks approval of a \$5,000 settlement of Claimant's claims against Defendant. (Pet., item 10.) The payment is part of a \$100,000 settlement with all Plaintiffs, under which Petitioner and Dominguez-Ibarra each receive \$45,000 and Emily Dominguez Flores receives \$5,000. (Pet., item 11b(1), (5).)

Here, the Court finds the \$5,000 settlement reasonable. First, Claimant's only injury is emotional distress, for which he received no treatment and from which he has recovered completely. (Pet., items 6-8.) Second, Claimant sustained no physical injury and incurred no medical expenses. (Pet., item 12a; Attach. 11b(6).) Finally, the settlement resolves Claimant's claims without the delay and risk of the trial set for March 2027. (Pet., item 3b.)

Because Petitioner will receive \$45,000 from the same settlement and the same counsel represents every Plaintiff, the apportionment calls for closer review. (Pet., item 11b(3)-(5); Attach. 17e.) Petitioner attributes the \$45,000 shares she and Dominguez-Ibarra receive to the rent paid during the uninhabitable period and to property damage. (Pet., Attach. 11b(6).) Claimant paid no rent and incurred no special damages. (Ibid.) Emily Dominguez Flores, whose share the Petition does not tie to rent or property damage, receives the same \$5,000 as Claimant. (Pet., item 11b(5); Attach. 11b(6).) Thus, the larger shares go only to the two Plaintiffs to whom the Petition ties rent and property damage. Subject to Petitioner's response on item 11b(2), discussed below, the Court finds the apportionment reasonable.

II. Attorney Fees

Petitioner requests \$1,250 in attorney fees, which is 25% of Claimant's gross recovery. (Pet., item 13a; Attach. 13a, ¶ 4.)

Here, the Court finds \$1,250 a reasonable fee. First, the representation agreement provides a 40% contingency fee once suit is filed, and counsel requests less. (Pet., Attach. 17a(2), ¶ 1.) Second, Claimant's fee is small in proportion to counsel's total compensation for the same work. Counsel expects to receive \$38,000 from Defendant upon approval, which equals 40% of the other Plaintiffs' combined \$95,000. (Pet., item 17f.) Claimant's \$1,250 is therefore about 3% of the \$39,250 counsel will receive for at least 25 hours of work on the case, less than his 5% share of the recovery. (Pet., Attach. 13a, ¶ 9.) Third, counsel took the case on contingency, advanced costs, and will not be paid until the compromise is approved. (Pet., Attach. 13a, ¶ 11.) Finally, counsel declares that Petitioner consented to the settlement amount, costs, and fees. (Pet., Attach. 13a, ¶ 10.)

Accordingly, if the Court approves the compromise, it will approve attorney fees of \$1,250.

III. Costs

Petitioner requests \$449.33 in costs from Claimant's share. (Pet., item 13b.) Here, expenses advanced by Claimant's attorney, consisting of \$170.85 in filing fees, \$78.48 in service costs, and \$200 in mediation fees, are reasonable. (Pet., item 13b; Attach. 13a, ¶ 11.) Accordingly, if the Court approves the compromise, it will approve costs of \$449.33.

IV. Balance to Parent

Petitioner requests that Claimant's net balance of \$3,300.67 be paid to her, as Claimant's parent, without bond. (Pet., item 18b(5); Attach. 18b(5).) Where no guardianship of the minor's estate exists, the Court may order that a balance of \$5,000 or less intended for a minor "be paid or delivered to a parent of the minor, without bond, upon the terms and under the conditions specified in Article 1 (commencing with Section 3400) of Chapter 2." (Prob. Code, § 3611, subd. (e); see *id.*, § 3610.) Article 1 permits payment only to "a parent of the minor entitled to the custody of the minor." (Prob. Code, § 3401, subd. (a).) It also requires the parent's "written assurance, verified by the oath of such parent, that the total estate of the minor, including the money or other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value." (*Id.*, subd. (c)(2).)

Here, the proposed disposition meets most of these requirements. First, Claimant has no guardianship of the estate. (Pet., item 18b.) Second, the balance of \$3,300.67 is under \$5,000. (Pet., item 15.) Third, Petitioner declares under penalty of perjury that she will hold the funds in trust for Claimant until he reaches majority. (Pet., Attach. 18b(5), ¶¶ 3-4.) Finally, Petitioner requested delivery under item 18b(5), which limits that option to a minor whose entire estate, including the money delivered, does not exceed \$5,000, and she verified the Petition under penalty of perjury. (Pet., item 18b(5); id. at p. 10.) Thus, the verified Petition, together with Petitioner's declaration that Claimant's total estate does not exceed \$5,000, satisfies the assurance requirement. (Pet., Attach. 18b(5), ¶ 2.)

V. Petitioner's Claim

Petitioner states that she has a claim against Claimant's recovery, other than for reimbursement of fees or expenses. (Pet., item 11b(2).) The form requires a petitioner who gives that answer to describe the claim, and how it affects the compromise, in Attachment 11b(2). (Ibid.)

Here, the Petition does not make the disclosure rule 7.950 requires on this point. Attachment 11b(2) repeats the apportionment explanation and identifies no claim Petitioner holds against Claimant's recovery. (Pet., Attach. 11b(2).) Nor does the rest of the Petition identify one, since Claimant incurred no medical expenses and Petitioner paid none of his fees or expenses. (Pet., items 12a, 14a.) Because Petitioner will also receive \$45,000 from the same settlement, the Court cannot approve the compromise without knowing whether she asserts any claim to Claimant's share. Counsel shall be prepared at the hearing to confirm whether the answer in item 11b(2) was made in error or to explain any claim Petitioner has against Claimant's recovery.

CONCLUSION

The hearing on the Petition to Approve Minor's Compromise is granted, provided counsel can address the issue noted in part V above.